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Case Number: 24STCV286141 Hearing Date: August 20, 2026 Dept: 408

Defendants Viacom International Services Inc.

and Paramount Global's Motion for Protective Order is GRANTED as to

SROGs Nos. 51-62. Requests for Sanctions are DENIED.

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I.

BACKGROUND

On July 28, 2026, Plaintiff Shawn David Wu ("Plaintiff")

filed a complaint against Defendants Viacom International Services Inc., Paramount

Global, Eliza Hart, and Ashley Kaplan alleging causes of action for:

1.

Discrimination

and Retaliation – Fair Employment and Housing Act (Violation of Gov. Code § 12940(h));

2.

Work

Environment Harassment - Fair Employment and Housing Act (Violation of Gov. Code § 12940(j));

3.

Failure

to Prevent Retaliation and Harassment - Fair Employment and Housing Act (Violation of Gov. Code § 12940(k));

4.

Whistleblower

Retaliation – Labor Code § 1102.5; and

5.

Injunctive

Relief.

On

January 10, 2025, Plaintiff filed a First Amended Complaint (“FAC”) against Viacom International Services Inc. and Paramount Global (“Defendants”) alleging causes of action for:

1.

Retaliation

– Fair Employment and Housing Act (Violation of Gov. Code § 12940(h));

2.

Failure

to Prevent Retaliation and Harassment - Fair Employment and Housing Act (Violation of Gov. Code § 12940(k)); and

3.

Whistleblower

Retaliation – Labor Code § 1102.5.

On

February 24, 2025, Defendants filed individual answers to Plaintiff’s FAC.

On

May 18, 2026, Defendants filed this Motion for Protective Order. On June 11, 2026, Plaintiff filed an opposition. On June 17, 2026, Defendants filed a reply.

On

June 25, 2026, the court ordered the parties to further meet and confer as to the Motion for Protective Order requesting supplemental briefing.

On

July 10, 2026, Defendants filed a supplemental brief. On July 23, 2026,

Plaintiff filed a supplemental opposition. On July 28, 2026, Defendants filed a supplemental reply.

II.

LEGAL STANDARD

“[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) “ ‘An order compelling discovery must rest on a showing that the discovery is reasonably calculated to lead to admissible evidence....’ ” (Cadiz Land Co. v. Rail Cycle (2000) 83 Cal.App.4th 74, 117.) “[I]t is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. [Citation.] Furthermore, California’s liberal approach to permissible discovery generally has led the courts to resolve any doubt in favor of permitting discovery [Citation.] In doing so, the courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the nondiscoverable rather than denying discovery of information vital to preparation or presentation of the party’s case or to efficacious settlement of the dispute. [Citation.] The courts have also taken the view that wherever possible objections to discovery should be resolved by protective orders addressing the specific harm shown by the respondent as opposed to a more general attack on the ‘relevancy’ of information the proponent seeks to discover.” (Norton v. Superior Court (1994) 24 Cal.App.4th 1750, 1761.) However, “[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.020.)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420 subd. (b).) “[T]he issuance and formulation of protective orders are to a large extent discretionary.” (Raymond

Handling Concepts Corp. v. Superior Court (1995) 39 Cal.App.4th 584, 588.)

III.

DISCUSSION

Defendants seek a protective order as to Plaintiff's Special Interrogatories, Set Three. (Supp. Reply, at pp. 2-3.) Following meet and confer efforts, the remaining interrogatories in dispute are SROGs Nos. 51-62. (Ibid.) Defendants contend that the remaining SROGs fit into three categories, as follows: (1) interrogatories seeking the race and gender of other persons within Plaintiff's department that were laid off at the same time as him (SROGs, Nos. 51-52); (2) interrogatories seeking the name, race, and gender, of all employees that worked in the same department as Plaintiff was in at the end of his employment, for a period greatly exceeding when Plaintiff himself was in that department (SROGs, Nos. 53-55); and (3) interrogatories seeking the name, race, gender, hire/fire date, and title of all "Executives" or "Senior Executives" within Nickelodeon (SROGs, Nos. 56-62). (Ibid.)

1.

SROGs Nos. 51-52

As

to SROGs Nos. 51-52, Defendants argue that the information requested is irrelevant as Plaintiff is not asserting a discrimination claim, but rather asserts a claim for retaliation based on his alleged protected complaints. (Id., at pp. 3-4.) Defendants contend that such SROGs do not seek information about whether any of the employees laid off at the same time as Plaintiff had engaged in protected activity similar to the activity Plaintiff allegedly engaged in. (Ibid.)

In

opposition, Plaintiff argues that evidence of disparate treatment of similarly situated employees is probative of pretext in retaliation cases because, if the layoff selection disproportionately affected employees who engaged in protected activity or who belonged to protected groups about whom Plaintiff had complained, that evidence would support an inference that the stated business reason was pretextual. (Opp., at pp. 5-6.) Plaintiff also argues that, if the layoff selection cut mostly people from minority groups, this decision-making could also support the reasonableness of Plaintiff's protected disclosures and complaints about Defendants' discriminatory practices. (Ibid.)

The

court finds that the information requested in SROGs Nos. 51-52 is irrelevant to the causes of action asserted in Plaintiff's FAC. The FAC alleges that Plaintiff made complaints that Defendants systematically discriminated against minorities in hiring and staffing decisions as a partial basis for the retaliation claim. (FAC, ¶¶ 11-15; 36.) The race and gender of those who were similarly terminated within Plaintiff's department would not demonstrate a retaliatory animus by Defendants based on the alleged protected activity as it fails to identify whether any of the employees also engaged in such protected conduct.

Accordingly,

the motion is granted as to SROGs Nos. 51-52.

2.

SROGs No. 53-55

As

to SROGs Nos. 53-55, Defendants argue that the information requested is similarly irrelevant as the actual demographic makeup of Plaintiff's department is not relevant to whether Plaintiff had a reasonable and good faith belief that unlawful discrimination was occurring to demonstrate Plaintiff engaged in protected activity for a retaliation cause of action. (Supp. Reply, at pp. 4-5.) Defendants also argue that such demographic data does not go to the reasonableness of Plaintiff's alleged belief as Plaintiff admits, he did not have this data at the time of his alleged complaints. (Id., at p. 5.) Moreover, Defendants argue that the requested data does not involve a department about which Plaintiff purportedly complained of and seeks information outside the time of Plaintiff's employment. (Id., at pp. 5-6.)

In

opposition, Plaintiff argues that this information is foundational to any comparative analysis and is essential to understanding the context in which the termination decision was made. (Supp. Opp., at pp. 6-8.) Plaintiff further argues that to evaluate the reasonableness of his complaints and to prove that his termination was pretextual, Plaintiff must be able to compare the demographic composition of the department, identify which employees were selected for layoff, and determine whether the selection process reflected legitimate business criteria or discriminatory and retaliatory motives. (Ibid.)

The

court finds that SROGs No. 53-55 seek irrelevant information for Plaintiff's retaliation claim. Plaintiff fails to show that the requested information would demonstrate Defendants' retaliatory animus as the race and gender of those employees which were terminated is unrelated to whether Plaintiff was terminated based on his alleged protected activity or whether those employees also engaged in the purported protected activity.

Accordingly,

the motion is granted as to SROGs Nos. 53-55.

3.

SROGs No. 56-62

As

to SROGs Nos. 56-62, Defendants argue that the information requested is irrelevant as demographic information regarding the makeup of Nickelodeon does not go to the reasonableness of Plaintiff's alleged belief Defendants engaged in unlawful discrimination because that information was not available to Plaintiff at the time. (Supp. Reply, at p. 6.) Defendants further argue that Plaintiff's request is overbroad as Plaintiff worked in a small division of Nickelodeon and failed to show why information about the entirety of Nickelodeon could be relevant. (Ibid.)

In

opposition, Plaintiff argues that this information is essential to evaluating the reasonableness of Plaintiff's protected complaints regarding discriminatory hiring and staffing in executive positions. (Supp. Opp., at pp. 8-12.) Plaintiff also argues that the information is limited to a specific time frame and geographic location. (Ibid.)

For

the same reasons stated above, the court finds that the information requested is irrelevant to Plaintiff's claim for retaliation based on a protected activity. (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042 [“Protected activity” includes “oppos[ing] conduct that the employee reasonably and in good faith believes to be discriminatory, whether or not the challenged conduct is ultimately found to violate the FEHA. It is well established that a retaliation claim may be brought by an employee who has complained of or

opposed conduct that the employee reasonably believes to be discriminatory, even when a court later determines the conduct was not actually prohibited by the FEHA."].)

Accordingly,
the motion is granted as to SROGs Nos. 53-55.

4.
Request for Sanctions

The
court denies both parties' request for sanctions based on their good faith efforts to resolve these matters without court intervention and the merit of the limited issues presented.

IV.
CONCLUSION

Defendants Viacom International Services Inc.
and Paramount Global's Motion for Protective Order is GRANTED as to
SROGs Nos. 51-62. Requests for Sanctions are DENIED.